

E-book Piracy: Can I Make It Stop?

The answer – a definite maybe.

Last week on my Facebook and Tumblr accounts, I shared an article by indie author M. Todd Gallowglas. In his post, he explained that in this past year he has lost at least \$13,000, and probably more, to e-book piracy.

E-books are the perfect target for web pirates, which creates a frightening wake-up call for those of us in the writing trade. As an indie author, the very idea that people would STEAL my books and STEAL my profits makes me furious to the point of near homicidal lunacy!



Ranting and raving aside, I started wondering if I could be proactive and do something about stopping my titles from being pirated now and in the future.

I knew right away that pirates – hackers – almost always find a way around everything, so there is no foolproof way of eliminating piracy. But there are ways of minimizing it.

Protection from Pirates — Options to Protect Your E-books

Unless you can get all the thieves in the world to stop stealing stuff, there will always be people making bad choices.

Fortunately, you do have low and high-cost options for what you can do to better protect your intellectual property.

Legal Means and Low-Cost Options

In his article, “Avast Ye Matey: What to Do if Your eBook is Pirated,” Robert Stanek explains how he has been studying the effects of piracy on the publishing industry, particularly the financial losses his own works have suffered.



Stanek has been in the writing industry since 1995, and he has become quite the prolific writer with 150 titles under his belt. Most of his projects were not even e-books originally.

So how did people steal his work?

Easy, they stole it old-school style by scanning it into the computer, page by page, and making it into a giant downloadable PDF.

How much money has he lost? Stanek estimates that his losses are somewhere around \$100 million.

Stanek is by no means an indie author, and certainly he has the financial ability to hire people to monitor and stop the piracy of his books. That aside, he discusses how indie authors can and should try to stop piracy with the right legal tools and leverage currently available.

The main legal tool he mentions is the Digital Millennium Copyright Act, commonly known as the DMCA letter that requires people to cease and desist illegal downloads and uploads of stolen material.

Of course, even with a generic DMCA letter, you have to find out who is stealing your stuff before you can send out letters to make them stop.

Even if you know every pirate site out there, one of the biggest obstacles in proving your information is being stolen has to do with filenames. Some hackers will use the name of the book, but others will include only the main words, spell the words differently, put them in a different order, or use some other name all together.

You could go on all the pirate sites and look for a bunch of different versions of your book title's name. You could even set up Google alerts to do the same. That said, as Stanek warns, it's a timely process, and you can only search for the names you can think of.

After you find out who is stealing your stuff, you have to look through these sites and try to find ways to contact them to send them the DMCA letters.

Yuwanda Black posted an article in 2012 about different techniques for avoiding piracy, especially for e-book sellers. Although some of her information is a little dated now, she still makes a lot of pertinent suggestions that fall under the category of 'don't make things easier for thieves.'

Black points out that all writers should do the following:

- Make sure your PDF files cannot be changed
- Don't use easily recognizable filenames that hackers can quickly identify and steal
- Change-up your links and passwords regularly, if you can
- Remain vigilant in protecting your property.

Paid Services and Other More Costly Tools to Stop E-book Piracy

Both Black and Stanek advocate for the use of paid services, assuming you can afford them. If you only have a few titles published, you may not really need the services just yet. You will probably need them eventually, if you are like me and plan to keep producing fiction until the day you die.



Besides organizations that provide anti-piracy services, such as Muso, there are also software programs that can encrypt your files and make them less likely to be pirated. Some of the bigger publishing companies, like Harper Collins, have started to use digital watermarks as a means to monitor and track the movement of illegally downloaded e-books.

After DMCA orders, paid services, and encryption software, the final step in stopping piracy is to sue people for stealing your property.

Granted, there's nothing simple about suing people, since it involves lawyers and paperwork. Nevertheless, it is an option that all intellectual property owners must consider.

Yuwanda Black commented in her article that she has gotten to the point where she has at least one copyright lawyer on retainer. That may seem a bit extreme, but when you think about the tens of thousands of dollars you might be losing per year, then that retainer fee starts to look like a sound anti-piracy investment.